

1. Major Governing Laws

- 1.1. The Employment Act, 2007
- 1.2. The Labour Institutions Act, 2007
- 1.3. The Labour Relations Act, 2007
- 1.4. The Occupational Safety and Health Act, 2007
- 1.5. The Work Injury Benefits Act, 2007

2. Probation Period

- 2.1. The maximum probation period is six months.
- 2.2. It can be extended for a further six months with the employee's agreement.
- 2.3. Termination during probation requires at least seven days' notice or payment of seven days' wages in lieu of notice.

3. Employee Leave

*** **3.1. Annual Leave****

- 3.1.1. Entitlement: 21 working days with full pay after 12 months of service.
- 3.1.2. Pro-rated Leave: Upon termination, an employee gets at least one and three-quarter days for each completed month of service.
- 3.1.3. Compensation: Full pay is given during the leave period.
- 3.1.4. Leave Allowance: This is not required by law and is at the employer's discretion.

3.2. Sick Leave

- 3.2.1. Entitlement: Granted after 2 months of continuous service.
- 3.2.2. Duration: Up to 30 days with full pay, followed by up to 15 days with half pay in a 12-month period.
- 3.2.3. Procedure: An employee must provide a medical certificate from a doctor.
- 3.2.4. Termination: After this sick leave is used, an employer can terminate employment based on a medical report.

3.3. Maternity Leave

- 3.3.1. Entitlement: 3 months with full pay.
- 3.3.2. Right to Return: The employee has the right to return to her previous job or a suitable alternative.
- 3.3.3. Notice: The employee must give at least 7 days' written notice of her intention to take leave.
- 3.3.4. Compensation: Full pay during leave, and annual leave is not affected.

3.4. Paternity Leave

3.4.1. Entitlement: 14 calendar days with full pay for a male employee whose wife has had a baby.

4. Public Holidays

4.1. Employees are entitled to paid rest on public holidays.

4.2. If an employee works on a public holiday, they must be paid at least double their normal hourly rate.

5. Working Hours and Overtime

5.1. The maximum working week is 48 hours.

5.2. Any extra hours are considered overtime.

5.3. Overtime Pay:

- 1.5 times the normal rate for overtime on normal working days.

- 2 times the normal rate for overtime on public holidays.

6. Training

6.1. The only mandatory training required by law is for Occupational Safety and Health.

7. Remuneration and Taxes

7.1. Minimum Wage

7.1.1. The official figure is Ksh 6,000 per month, but this was set in 1984 and is generally outdated.

7.2. Income Tax (PAYE) for Residents**

7.2.1. Up to Ksh 235,000: 0%

7.2.2. Ksh 235,001 - 335,000: 10%

7.2.3. Ksh 335,001 - 410,000: 20%

7.2.4. Above Ksh 410,000: 30% (plus a fixed amount)

8. Statutory Benefits

8.1. Pension: The employee contributes 5% of gross pay, and the employer contributes 10%.

8.2. Medical: There is no mandatory medical scheme in Kenyan law.

9. Workplace Harassment and Discrimination

9.1. Discrimination based on race, sex, religion, disability, or HIV status is unlawful.

9.2. Sexual harassment is prohibited and can result in imprisonment.

9.3. Employers with more than 25 staff must have policies to prevent sexual harassment.

10. Retirement

10.1. The normal retirement age is 55 years, but this is a policy, not a strict legal requirement.

11. Termination of Employment

11.1. Notice Periods

11.1.1. More than 6 months but less than 1 year: Not less than 2 weeks' notice.

11.1.2. More than 1 year but less than 5 years: Not less than 1 month's notice.

11.1.3. 5 years to 10 years: Not less than 2 months' notice.

11.1.4. More than 10 years: Not less than 3 months' notice.

11.2. Dismissal

11.2.1. An employer can dismiss an employee without notice if the employee fundamentally breaches the contract.

11.2.2. The employer must prove the offense and give the employee a fair chance to defend themselves.

11.3. Redundancy/Layoff

11.3.1. The law does not specifically define redundancy, treating it as a form of termination.

11.3.2. An employee with at least 6 months of service is entitled to severance pay, which should be negotiated between the employer and employee.

12. Health, Safety, and Compensation

12.1. General Safety

12.1.1. Regulated by the Occupational Safety and Health Act.

12.2. Injury or Death Compensation

12.2.1. Regulated by the Work Injury Benefits Act.

12.2.2. Employers must have insurance to cover workplace injuries.

12.2.3. Death Compensation: 60 months' salary.

12.2.4. Disability Compensation: Depends on the degree of disability as assessed by a doctor.